

SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES

NOTE: OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, AND 30.

1. REQUISITION NUMBER			PAGE 1 OF		
2. CONTRACT NUMBER	3. AWARD/EFFECTIVE DATE	4. ORDER NUMBER	5. SOLICITATION NUMBER	6. SOLICITATION ISSUE DATE	
7. FOR SOLICITATION INFORMATION CALL:			a. NAME		b. TELEPHONE NUMBER (<i>No collect calls</i>)
			8. OFFER DUE DATE/ LOCAL TIME		
9. ISSUED BY CODE			10. THIS ACQUISITION IS ☐ UNRESTRICTED OR ☐ SET ASIDE: % FOR: ☐ SMALL BUSINESS ☐ WOMEN-OWNED SMALL BUSINESS (WOSB) NORTH AMERICAN INDUSTRY CLASSIFICATION STANDARD (NAICS): ☐ HUBZONE SMALL BUSINESS ☐ ECONOMICALLY DISADVANTAGED ☐ VETERAN-OWNED SMALL BUSINESS (EDWOSB) SIZE STANDARD: ☐ SERVICE-DISABLED ☐ 8(A) ☐ SDVOSB		
11. DELIVERY FOR FREE ON BOARD (FOB) DESTINATION UNLESS BLOCK IS MARKED ☐ SEE SCHEDULE	12. DISCOUNT TERMS		13a. THIS CONTRACT IS A ☐ RATED ORDER UNDER THE DEFENSE PRIORITIES AND ALLOCATIONS SYSTEM - DPAS (15 CFR 700)		13b. RATING 14. METHOD OF SOLICITATION REQUEST ☐ INVITATION ☐ FOR QUOTE ☐ FOR BID ☐ FOR PROPOSAL (RFQ) (IFB) (RFP)
15. DELIVER TO CODE			16. ADMINISTERED BY CODE		
17a. CONTRACTOR/ OFFEROR CODE FACILITY CODE			18a. PAYMENT WILL BE MADE BY CODE		
TELEPHONE NUMBER ☐ 17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER			18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED ☐ SEE ADDENDUM		
19. ITEM NUMBER	20. SCHEDULE OF SUPPLIES/SERVICES		21. QUANTITY	22. UNIT	23. UNIT PRICE
(Use Reverse and/or Attach Additional Sheets as Necessary)					
25. ACCOUNTING AND APPROPRIATION DATA				26. TOTAL AWARD AMOUNT (<i>For Government Use Only</i>)	
☐ 27a. SOLICITATION INCORPORATES BY REFERENCE (FEDERAL ACQUISITION REGULATION) FAR 52.212-1, 52.212-4. FAR 52.212-3 AND 52.212-5 ARE ATTACHED. ADDENDA ☐ ARE ☐ ARE NOT ATTACHED ☐ 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA ☐ ARE ☐ ARE NOT ATTACHED ☐ 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED					
29. AWARD OF CONTRACT: REFERENCE OFFER DATED . YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN, IS ACCEPTED AS TO ITEMS:					
30a. SIGNATURE OF OFFEROR/CONTRACTOR			31a. UNITED STATES OF AMERICA (<i>SIGNATURE OF CONTRACTING OFFICER</i>)		
30b. NAME AND TITLE OF SIGNER (<i>Type or print</i>)	30c. DATE SIGNED	31b. NAME OF CONTRACTING OFFICER (<i>Type or print</i>)		31c. DATE SIGNED	

Solicitation/Contract Form Continuation

Shear Maintenance

Continuation of Supplies or Services and Prices/Costs

Additional Information/Notes

Item	Supplies/Service	Quantity	Unit	Unit Price	Amount
0001	SHEAR MAINTENANCE Internal Number: 1000000880 Pricing Arrangement: Firm Fixed Price	1	Job		

Continuation of Description

Requirements

Maintenance and Repair of Hydraulic Shear AS 500-14

Continuation of Packaging and Marking

Continuation of Inspection and Acceptance

Overall Contract Inspection/Acceptance Locations

0001	Inspection and Acceptance Location Both Destination Instructions: Follow PWS Instructions DoDAAC: N65971 CountryCode: USA NAVAL CONSTRUCTION TRAINING CENTER 5510 CBC 8TH STREET, BLDG 443 GULFPORT, MS 39501-5003 UNITED STATES NCTC DGR, DGR Email: austin.t.bracelin.mil@us.navy.mil
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Continuation of Deliveries or Performance

Overall Contract Delivery Period

Line Item	Delivery Schedule	Quantity	Address and POC
0001	Delivery Period From 01 Apr 2026 to 29 May 2026	1 Job	Ship To DoDAAC: N65971 CountryCode: USA NAVAL CONSTRUCTION TRAINING CENTER 5510 CBC 8TH STREET, BLDG 443 GULFPORT, MS 39501-5003 UNITED STATES DGR, DGR Email: austin.t.bracelin.mil@us.navy.mil

Continuation of Accounting and Appropriation Data

Contract Clauses

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.204-13	System for Award Management-Maintenance. (Deviation)	Feb 2026		
52.212-4	Terms and Conditions-Commercial Products and Commercial Services. (Deviation)	Feb 2026		
52.219-6	Notice of Total Small Business Set-Aside. (Deviation)	Feb 2026		
52.222-41	Service Contract Labor Standards. (Deviation)	Feb 2026		
52.222-55	Minimum Wages for Contractor Workers Under Executive Order 14026. (Deviation)	Feb 2026		
52.222-62	Paid Sick Leave Under Executive Order 13706. (Deviation)	Feb 2026		
52.226-8	Encouraging Contractor Policies to Ban Text Messaging While Driving.	May 2024		
52.232-33	Payment by Electronic Funds Transfer-System for Award Management.	Oct 2018		
52.232-40	Providing Accelerated Payments to Small Business Subcontractors.	Mar 2023		
52.233-3	Protest after Award. (Deviation)	Feb 2026		
52.233-4	Applicable Law for Breach of Contract Claim. (Deviation)	Feb 2026		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.203-7000	Requirements Relating to Compensation of Former DoD Officials.	Sep 2011		
252.203-7002	Requirement to Inform Employees of Whistleblower Rights.	Dec 2022		
252.204-7004	Antiterrorism Awareness Training for Contractors.	Jan 2023		
252.204-7012	Safeguarding Covered Defense Information and Cyber Incident Reporting.	May 2024		
252.204-7018	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.	Jan 2023		
252.204-7020	NIST SP 800-171 DoD Assessment Requirements.	Nov 2023		
252.204-7022	Expediting Contract Closeout.	May 2021		
252.223-7008	Prohibition of Hexavalent Chromium.	Jan 2023		
252.225-7051	Prohibition on Acquisition of Certain Foreign Commercial Satellite Services.	Dec 2022		
252.225-7056	Prohibition Regarding Business Operations with the Maduro Regime.	Jan 2023		
252.225-7060	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region.	Jun 2023		
252.232-7003	Electronic Submission of Payment Requests and Receiving Reports.	Dec 2018		
252.232-7010	Levies on Contract Payments.	Dec 2006		
252.244-7000	Subcontracts for Commercial Products or Commercial Services.	Nov 2023		

FAR Clauses Incorporated by Full Text

52.219-28 Postaward Small Business Program Rerepresentation. (Deviation) (Feb 2026)

POSTAWARD SMALL BUSINESS PROGRAM REREPRESENTATION (FEB 2026) (DEVIATION)

(a) *Definitions.* As used in this clause-

Long-term contract means a contract of more than five years in duration, including options. However, the term does not include contracts that exceed five years in duration because the period of performance has been extended for a cumulative period not to exceed six months under the clause at 52.217-8, Option to Extend Services, or other appropriate authority.

Small business concern-

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and the size standard in paragraph (c) of this clause.

(2) *Affiliates*, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

(b) If the Contractor represented that it was a small business concern, a small disadvantaged business concern, or a joint venture that was any of the small business concerns identified in 19.000(a)(3) prior to award of this contract, the Contractor shall rerepresent its size and socioeconomic status according to paragraph (e) of this clause or, if applicable, paragraph (g) of this clause, upon occurrence of any of the following:

(1) Within 30 days after execution of a novation agreement or within 30 days after modification of the contract to include this clause, if the novation agreement was executed prior to inclusion of this clause in the contract.

(2) Within 30 days after a merger or acquisition that does not require a novation or within 30 days after modification of the contract to include this clause, if the merger or acquisition occurred prior to inclusion of this clause in the contract.

(3) For long-term contracts-

(i) Within 60 to 120 days prior to the end of the fifth year of the contract; and

(ii) Within 60 to 120 days prior to the date specified in the contract for exercising any option thereafter.

(c) The Contractor shall rerepresent its size status in accordance with the size standard in effect at the time of this rerepresentation that corresponds to the North American Industry Classification System (NAICS) code(s) assigned to this contract. The small business size standard corresponding to this NAICS code(s) can be found at <https://www.sba.gov/document/support--table-size-standards>.

(d) The small business size standard for a Contractor providing an end item that it does not manufacture, process, or produce itself, for a contract other than a construction or service contract, is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition-

(1) Was set aside for small business and has a value above the simplified acquisition threshold;

(2) Used the HUBZone price evaluation preference regardless of dollar value, unless the Contractor waived the price evaluation preference; or

(3) Was an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(e) Except as provided in paragraph (g) of this clause, the Contractor shall make the representation(s) required by paragraph (b) of this clause by validating or updating all its representations in the Representations and Certifications section of the System for Award Management (SAM) and its other data in SAM, as necessary, to ensure that they reflect the Contractor's current status. The Contractor shall notify the contracting officer in writing within the timeframes specified in paragraph (b) of this clause, that the data have been validated or updated, and provide the date of the validation or update.

(f) If the Contractor represented that it was other than a small business concern prior to award of this contract, the Contractor may, but is not required to, take the actions required by paragraphs (e) or (g) of this clause.

(g) If the Contractor does not have representations and certifications in SAM, or does not have a representation in SAM for the NAICS code applicable to this contract, the Contractor is required to complete the following rerepresentation and submit it to the contracting office, along with the contract number and the date on which the rerepresentation was completed:

(1) The Contractor represents that it ☐ is, ☐ is not a small business concern under ____ NAICS Code assigned to ____ contract number.

(2) *[Complete only if the Contractor represented itself as a small business concern in paragraph (g)(1) of this clause.]* The Contractor represents that it ☐ is, ☐ is not, a small disadvantaged business concern as defined in 13 CFR 124.1001.

(3) *Women-owned small business (WOSB) joint venture eligible under the WOSB Program.* The Contractor represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [____ The Contractor shall enter the name and unique entity identifier of each party to the joint venture: ____.]

(4) *Economically disadvantaged women-owned small business (EDWOSB) joint venture.* The Contractor represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [____ The Contractor shall enter the name and unique entity identifier of each party to the joint venture: ____.]

(5) *Service-disabled veteran-owned small business (SDVOSB) joint venture eligible under the SDVOSB Program.* The Contractor represents that it ☐ is, ☐ is not an SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. [____ The Contractor shall enter the name and unique entity identifier of each party to the joint venture: ____.]

(6) *HUBZone joint venture eligible under the HUBZone Program.* *[Complete only if the offeror is a HUBZone small business concern.]* The offeror represents, as part of its offer, that It ☐ is, ☐ is not a HUBZone joint venture that complies with the requirements of 13 CFR 126.616(a) through (c). [____ The Contractor shall enter the name and unique entity identifier of each party to the joint venture: ____.] Each HUBZone small business concern participating in the HUBZone joint venture must be certified as a HUBZone concern. [____ Contractor to sign and date and insert authorized signer's name and title.]

(End of clause)

In compliance with the Service Contract Labor Standards statute and the regulations of the Secretary of Labor (29 CFR Part 4), this clause identifies the classes of service employees expected to be employed under the contract and states the wages and fringe benefits payable to each if they were employed by the contracting agency subject to the provisions of 5 U.S.C.5341 or 5 332.

This Statement is for Information Only: It is not a Wage Determination

Employee Class	Monetary Wage-Fringe Benefits
<u>23580 - MAINTENANCE TRADES HELPER</u>	<u>\$22.35</u>

(End of clause)

DFARS Clauses Incorporated by Full Text

252.204-7021 Contractor Compliance with the Cybersecurity Maturity Model Certification Level Requirements. (Nov 2025)

CONTRACTOR COMPLIANCE WITH THE CYBERSECURITY MATURITY MODEL CERTIFICATION LEVEL REQUIREMENTS (NOV 2025)

(a) *Definitions.* As used in this clause-

"Controlled unclassified information" means information the Government creates or possesses, or information an entity creates or possesses for or on behalf of the Government, that a law, regulation, or Governmentwide policy requires or permits an agency to handle using safeguarding or dissemination controls (32 CFR 2002.4(h)).

"Current" means-

(1) With regard to Conditional Cybersecurity Maturity Model Certification (CMMC) Status-

(i) Not older than 180 days for Conditional Level 2 (Self) assessments and Conditional Level 2 (certified third-party assessment organization (C3PAO)) assessments, with-

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Conditional CMMC Status date (see 32 CFR 170.16 and 170.17); and

(B) A corresponding affirmation of continuous compliance by an affirming official (see 32 CFR 170.4); and

(ii) Not older than 180 days for Conditional Level 3 (Defense Industrial Base Cybersecurity Assessment Center (DIBCAC)) assessments, with-

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Conditional CMMC Status date (see 32 CFR 170.18); and

(B) A corresponding affirmation of continuous compliance by an affirming official;

(2) With regard to Final CMMC Status-

(i) Not older than 1 year for Final Level 1 (Self), with-

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Final CMMC Status date (see 32 CFR 170.15); and

(B) A corresponding affirmation of continuous compliance, not older than 1 year, by an affirming official;

(ii) Not older than 3 years for Final Level 2 (Self) assessments and Final Level 2 (C3PAO) assessments, with-

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Final CMMC Status date (see 32 CFR 170.16 and 170.17); and

(B) A corresponding affirmation of continuous compliance, not older than 1 year, by an affirming official; and

(iii) Not older than 3 years for Final Level 3 (DIBCAC) assessments, with-

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Final CMMC Status date (see 32 CFR 170.18); and

(B) A corresponding affirmation of continuous compliance, not older than 1 year, by an affirming official; and

(3) With regard to affirmation of continuous compliance (32 CFR 170.22), not older than 1 year with no changes in compliance with the requirements at 32 CFR part 170.

"Cybersecurity Maturity Model Certification (CMMC) status" means the result of meeting or exceeding the minimum required score for the corresponding assessment. The potential statuses are as follows:

- (1) Final Level 1 (Self).
- (2) Conditional Level 2 (Self).
- (3) Final Level 2 (Self).
- (4) Conditional Level 2 (C3PAO).
- (5) Final Level 2 (C3PAO).
- (6) Conditional Level 3 (DIBCAC).
- (7) Final Level 3 (DIBCAC).

"Cybersecurity Maturity Model Certification unique identifier (CMMC UID)" means 10 alpha-numeric characters assigned to each CMMC assessment and reflected in the Supplier Performance Risk System (SPRS) for each contractor information system.

"Federal contract information (FCI)" means information, not intended for public release, that is provided by or generated for the Government under a contract to develop or deliver a product or service to the Government. It does not include information provided by the Government to the public, such as on public websites, or simple transactional information, such as information necessary to process payments.

"Plan of action and milestones" means a document that identifies tasks to be accomplished. It details resources required to accomplish the elements of the plan, any milestones in meeting the tasks, and scheduled completion dates for the milestones, as defined in National Institute of Standards and Technology Special Publication 800-115 (32 CFR 170.21).

(b) *Framework.* The Cybersecurity Maturity Model Certification (CMMC) is a framework for assessing a contractor's compliance with applicable information security protections (see 32 CFR part 170).

(c) *Duplication.* The CMMC assessments will not duplicate efforts from any other comparable DoD assessment, except for rare circumstances when a reassessment may be necessary, for example, when there are indications of issues with cybersecurity and/or compliance with CMMC requirements.

(d) *Requirements.* The Contractor shall-

(1)(i) Have and maintain for the duration of the contract a current CMMC status at the following CMMC level, or higher: _____
Contracting Officer insert: CMMC Level 1 (Self); CMMC Level 2 (Self); CMMC Level 2 (C3PAO); or CMMC Level 3 (DIBCAC) for all information systems used in performance of the contract, task order, or delivery order that process, store, or transmit FCI or CUI; and

(ii) Consult 32 CFR 170.23 related to the flowdown of the CMMC requirements, and flow down the correct CMMC level to subcontracts and other contractual instruments;

(2) Only process, store, or transmit FCI or CUI on contractor information systems that have a CMMC status at the CMMC level required in paragraph (d)(1) of this clause, or higher;

(3) Complete on an annual basis, and maintain as current, an affirmation, by the affirming official (see 32 CFR 170.4), of continuous compliance with the requirements associated with the CMMC level required in paragraph (d)(1) of this clause in the Supplier Performance Risk System (SPRS) (<https://piee.eb.mil>) for each CMMC UID applicable to each of the contractor information systems that process, store, or transmit FCI or CUI and that are used in performance of the contract;

(4) Ensure all subcontractors and suppliers complete prior to subcontract award, and maintain on an annual basis, an affirmation, by the affirming official (see 32 CFR 170.4), of continuous compliance with the requirements associated with the CMMC level required for the subcontract or other contractual instrument for each of the subcontractor information systems that process, store, or transmit FCI or CUI and that are used in performance of the subcontract; and

(5) If the Contractor has a CMMC Status of Conditional, successfully close out a valid plan of action and milestones (32 CFR 170.21) to achieve a CMMC Status of Final.

(e) *Reporting.* The Contractor shall-

(1) Submit to the Contracting Officer-

(i) The CMMC UID(s) issued by SPRS for contractor information systems that will process, store, or transmit FCI or CUI during performance of the contract; and

(ii) Any changes in the CMMC UIDs generated in SPRS throughout the life of the contract, task order, or delivery order, if applicable;

(2) Enter into SPRS the results of a current self-assessment for each CMMC UID, not covered by a C3PAO assessment or DIBCAC assessment, applicable to each of the contractor information systems that process, store, or transmit FCI or CUI and that are used in performance of the contract; and

(3) Complete in SPRS on an annual basis and maintain as current an affirmation of continuous compliance by the affirming official (see 32 CFR 170.4) for each self-assessment, C3PAO assessment, or DIBCAC assessment required under the contract in SPRS.

(f) *Subcontracts.* The Contractor shall-

(1) Insert the substance of this clause, including this paragraph (f) and excluding paragraph (e)(1), in subcontracts and other contractual instruments, including those for the acquisition of commercial products or commercial services, excluding commercially available off-the-shelf items, if the subcontract or other contractual instrument will contain a requirement to process, store, or transmit FCI or CUI; and

(2) Prior to awarding a subcontract or other contractual instrument, ensure that the subcontractor has a current CMMC certificate or current CMMC status at the CMMC level that is appropriate for the information that is being flowed down to the subcontractor based on the requirements at 32 CFR 170.23.

(End of clause)

252.232-7006 Wide Area WorkFlow Payment Instructions.

(Jan 2023)

WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (JAN 2023)

(a) *Definitions.* As used in this clause-

"Department of Defense Activity Address Code (DoDAAC)" is a six position code that uniquely identifies a unit, activity, or organization.

"Document type" means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).

"Local processing office (LPO)" is the office responsible for payment certification when payment certification is done external to the entitlement system.

"Payment request" and "receiving report" are defined in the clause at 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(b) *Electronic invoicing.* The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation Supplement (DFARS) 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(c) *WAWF access.* To access WAWF, the Contractor shall-

(1) Have a designated electronic business point of contact in the System for Award Management at <https://www.sam.gov>; and

(2) Be registered to use WAWF at <https://wawf.eb.mil/> following the step-by-step procedures for self-registration available at this web site.

(d) *WAWF training.* The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the "Web Based Training" link on the WAWF home page at <https://wawf.eb.mil/>

(e) *WAWF methods of document submission.* Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.

(f) *WAWF payment instructions.* The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:

(1) *Document type.* The Contractor shall submit payment requests using the following document type(s):

(i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.

(ii) For fixed price line items-

(A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.

(B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the requirements for the invoice and receiving report, or the applicable invoice and receiving report, as specified by the Contracting Officer.

2 in 1

(iii) For customary progress payments based on costs incurred, submit a progress payment request.

(iv) For performance based payments, submit a performance based payment request.

(v) For commercial financing, submit a commercial financing request.

(2)) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract.

(3) *Document routing.* The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

Routing Data Table*

<i>Field Name in WAWF</i>	<i>Data to be entered in WAWF</i>
Pay Official DoDAAC	<u>N50082</u>
Issue By DoDAAC	<u>N68836</u>
Admin DoDAAC	<u>N68836</u>
Inspect By DoDAAC	<u>N65971</u>
Ship To Code	==
Ship From Code	==
Mark For Code	==
Service Approver (DoDAAC)	
Service Acceptor (DoDAAC)	<u>N65971</u>
Accept at Other DoDAAC	==

LPO DoDAAC	<u>N65971</u>
DCAA Auditor DoDAAC	==
Other DoDAAC(s)	==

(*Contracting Officer: Insert applicable DoDAAC information. If multiple ship to/acceptance locations apply, insert "See Schedule" or "Not applicable.")

(**Contracting Officer: If the contract provides for progress payments or performance-based payments, insert the DoDAAC for the contract administration office assigned the functions under FAR 42.302(a)(13).)

(4) *Payment request.* The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as applicable.

(5) *Receiving report.* The Contractor shall ensure a receiving report meets the requirements of DFARS Appendix F.

(g) *WAWF point of contact.*

(1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity's WAWF point of contact.

PAMELA.H.SIMMONS.CIV@US.NAVY.MIL

(2) Contact the WAWF helpdesk at 866-618-5988, if assistance is needed.

(End of clause)

Additional Regulation or Supplemental Clauses Incorporated by Full Text

243-9400(1-92) SUPTXT243-9400(1-92) AUTHORIZED CHANGES ONLY BY THE CONTRACTING OFFICER

(Jan 2024)

AUTHORIZED CHANGES ONLY BY THE CONTRACTING OFFICER

(a) Except as specified in paragraph (b) below, no order, statement, or conduct of Government personnel who visit the Contractor's facilities or in any other manner communicate with Contractor personnel during the performance of this contract shall constitute a change under the "Changes" clause of this contract.

(b) The Contractor shall not comply with any order, direction or request of Government personnel unless it is issued in writing and signed by the Contracting Officer, or is pursuant to specific authority otherwise included as a part of this contract.

(c) The Contracting Officer is the only person authorized to approve changes in any of the requirements of this contract and notwithstanding provisions contained elsewhere in this contract, the said authority remains solely with the Contracting Officer. In the event the Contractor effects any change at the direction of any person other than the Contracting Officer, the change will be considered to have been made without authority and no adjustment will be made in the contract price to cover any increase in charges incurred as a result thereof. The address and telephone number of the Contracting Officer is:

NAME: Contracting Office

ADDRESS: NAVSUP FLCJ, 110 Yorktown Ave, 3rd Floor, Jacksonville FL 32212

TELEPHONE: 904-968-0026

**204-9400(05-24) SUPTXT204-9400(05-24) CONTRACTOR UNCLASSIFIED ACCESS TO
FEDERALLY CONTROLLED FACILITIES, SENSITIVE INFORMATION,
INFORMATION TECHNOLOGY (IT) SYSTEMS OR PROTECTED HEALTH
INFORMATION (Jan 2024)**

(a) Insert the following, as applicable, in full text in all solicitations and contracts (including commercial acquisitions) Statement of Work (SOW) or Performance Work Statement (PWS) under the Schedule of Supplies/Services.

To submit recommended contract language to be incorporated into the Naval Supply Systems Command (NAVSUP) Contracts Handbook (CH) as NAVSUP component text, the language must not meet the requirements for a regulation clarification or change. All submissions (utilizing the text template on Contracting Knowledge Site (CKS)) should be reviewed and approved by the activity's Chief of the Contracting Office (CCO) prior to submission.

(1) SUPTXT204-9400 (05-24) Prescription and Alternative Language

The following shall be inserted in full text in all solicitations and contracts (including commercial acquisitions) which require contractor unclassified access to federally controlled facilities, sensitive information, Information Technology (IT) systems or protected health information. For commercial acquisitions, this text shall be incorporated into either the SOW or PWS.

* Consult with your CSM and ISSM/IAM for local policy when Authorized User (non-sensitive) access is required for non-U.S. citizens outside the U.S.

** Alternative language which may be included as appropriate:

Contractor and all Contractor employees with access to or responsibility for XXXXXX of this contract shall comply with DoD Directive 8500.1E IA, DoDI 8510.01 Risk Management Framework (RMF) for DoD IT, DoD Directive 5400.11 DoD Privacy Program, DoD 5200.2-R Personnel Security Program and HSPD 12

X.1 Be CAC ready at the properly designated IT System Level

X.2 At minimum, all contractor employees must possess/maintain the required background investigation as determined by the PDT and/or IT access user level. This requirement is critical in order to access the government data base systems It is the contractor's responsibility to ensure that 100% of the contractor employees have the ability to acquire a favorably adjudicated background investigation. In addition, interim approval of clearances is not authorized.

X.3 Be citizens of the U.S

X.4 If at any time, any contractor employee requiring a Common Access Card (CAC) is unable to possess/maintain the required adjudicated background investigation, the contractor shall immediately notify the NAVSUP COR to coordinate removal of such a person from work under this contract.

X.5 Contractor employees with access to or responsibility for nonpublic government data under this contract must comply with HSPD-12 Personal Identity Verification (PIV) issuance requirements, known as the CAC.

**(1) SUPTXT204-9400(4-22) CONTRACTOR UNCLASSIFIED ACCESS TO FEDERALLY CONTROLLED FACILITIES, SENSITIVE
INFORMATION, INFORMATION TECHNOLOGY (IT) SYSTEMS OR PROTECTED HEALTH INFORMATION**

The security text does not apply in cases where the contractor/vendor does not have access to Navy Marine Corps Intranet (NMCI) computers, is not issued a Common Access Card (CAC) and is involved in training or other short term duties of less than 30 days duration that allow for the use of a visitor request. In these cases, the government employee must submit a Visitor Access Request (VAR) to the main gate or applicable processing entity for your facility and assume responsibility to escort those without CAC Credentials.

This local text does not apply to non-United States (U.S.) Nationals (foreign nationals) who are contractor employees performing work overseas. This text is applicable to the U.S. Nationals living in the U.S. or overseas who are performing work on a Navy contract.

The investigation of a non-U.S. national at a foreign location must be consistent with a National Agency Check with Written Inquiries (NACI), to the extent possible and include a fingerprint check against the Federal Bureau of Investigation (FBI) criminal history database, an FBI investigations file (name check) search and a name check against the terrorist screening database. Also, the above cited reference notes that Foreign Nationals may not be granted CAC credentials until completion of their investigation and not in the interim.

Per Department of Defense Memorandum (DoDM) 5200.2, Department of Defense (DoD) components must initiate and ensure completion of a background investigation before applying the credentialing standards to a non-U.S. national at a foreign location. The background investigation must be favorably adjudicated before a CAC can be issued to a non-U.S. national at a foreign location. The type of background investigation may vary

based on standing reciprocity treaties concerning identity assurance and information exchanges that exist between the U.S. and its allies or agency agreements with the host country.

CONTRACTOR UNCLASSIFIED ACCESS TO FEDERALLY CONTROLLED FACILITIES, SENSITIVE INFORMATION, IT SYSTEMS OR PROTECTED HEALTH INFORMATION

Executive Order 13467, Reforming Processes Related to Suitability for Government Employee, Fitness for Contractor Employees and Eligibility for Access to Classified National Security Information, Homeland Security Presidential Directive (HSPD)-12, requires government agencies to develop and implement Federal security standards for Federal employees and contractors. The 5 CFR 32 Part 157 in concert with DoD Manual 1000.13, Vol 1, implements the Federal Standards.

APPLICABILITY

This text applies to all DoD sponsored individuals who require CAC eligibility (or login and P/W if acceptable per contract) for: Physical access to DoD facilities or non-DoD facilities on behalf of DoD; Logical access to information systems (whether on site or remotely); or remote access to DoD networks that use only the CAC logon for user authentication, or access to sensitive and protected information. This applies to the Office of the Secretary of Defense (OSD), the Military Departments, the Office of the Chairman of the Joint Chiefs of Staff and the Joint Staff, the Combatant Commands, the Office of the Inspector General of the DoD, the Defense Agencies, the DoD Field Activities and all other organizational entities within the DoD (hereinafter referred to collectively as the "DoD Components").

Each contractor employee providing services at a Navy command under this contract is required to obtain a DoD CAC. Additionally, depending on the level of computer/network access, the contract employee will require a successful investigation as detailed below.

ACCESS TO FEDERAL FACILITIES

Definition. As used in this clause - Military installation means a base, camp, post, station, yard, center, or other activity under the jurisdiction of the Secretary of a military department, or, in the case of an activity in a foreign country, under the operational control of the Secretary of a military department or the Secretary of Defense (see 10 U.S.C. 2801(c)(4)).

Per HSPD-12 and implementing guidance, all contractor employees working at a federally controlled base, facility or activity under this clause will require a DoD CAC. When access to a base, facility or activity is required contractor employees shall in-process with the Command's Security Manager (CSM) upon arrival to the command and shall out-process prior to their departure at the completion of the individual's performance under the contract.

Training. Contractor employees who require routine physical access to a Federally controlled facility or military installation shall complete "Level I Antiterrorism Awareness Training" prior to gaining access to a facility and annually thereafter in accordance with DoDI O-2000.16 Vol. 1. In accordance with Department of Defense Instruction O-2000.16 Volume 1, DoD Antiterrorism (AT) Program Implementation: DoD AT Standards, Level I Antiterrorism Awareness Training shall be completed by:

1. Completion of "Level I Antiterrorism Awareness Training" available at <https://jkodirect.jten.mil/pdf/at1/launch.html>; or
2. Under the instruction of a qualified Level I Antiterrorism Awareness instructor; or
3. By providing a training certificate for "Level I Antiterrorism Awareness Training" training showing completion within the last calendar year.

The contractor will submit certificates of completion for each affected contractor employee and subcontractor employee to the COR or to the contracting officer, if a COR is not assigned, prior to being granted access to a Federally controlled facility or military installation.

Subcontracts. The Contractor shall include the substance of this clause, including this paragraph (d), in subcontracts, including subcontracts for commercial items, when subcontractor performance requires routine physical access to a Federally-controlled facility or military installation.

OPERATION SECURITY (OPSEC)

It is DoD policy according to DoD Directive 5205.02E, "DoD Operations Security (OPSEC) Program," June 20, 2012, as amended to establish and maintain OPSEC programs to ensure national security-related missions and functions are protected.

Training: Contractor employees shall comply with all DoD OPSEC requirements and complete "OPSEC Awareness for Military Members, DoD Employees and Contractor" training within 30 days of onboarding the contract and annual refresher training thereafter. Training shall be completed through a DoD sponsored and certified computer or web-based learning instruction available at <https://securityawareness.usalearning.gov/opsec/index.htm>.

The contractor will submit certificates of completion for each affected contractor employee and subcontractor employee to the COR or to the contracting officer, if a COR is not assigned, within 30 calendar days after training is completed by all employees and subcontractor personnel.

START-UP PERIOD

All contractor resource onboarding documents must be submitted via the prime contractor. The prime contractor shall make all necessary preparations to assume full responsibility for productive performance as of the performance start date.

Definition of "productive":

- a. OF-306 signed by contractor employee
- b. FD-258 Fingerprint Card (Contingent upon availability of electronic fingerprinting submission)
- c. Completed Electronic Investigation (e-QIP)
- d. All contractor employees with need for a Common Access Card (CAC) must have an active Defense Information System for Security (DISS) profile.
- e. Common Access Card (CAC)
- f. DISS Visit Request submitted (Contingent upon classification of work being performed, Confidential, Secret, Top Secret).

Note (1): Invoicing by the contractor will begin as of the commencement of the performance period of services and no reimbursement will be paid by the government for efforts expended during the start-up period.

Note (2): Foreign Nationals are not allowed access to the functional/system side of Enterprise Resource Planning (ERP).

ACCESS TO DOD INFORMATION TECHNOLOGY (IT) SYSTEM

In accordance with DON CIO Memorandum (IT LEVEL DESIGNATION ON DD FORM 2875 SYSTEM AUTHORIZATION ACCESS REQUEST) 08 September 2020, contractor employees who require access to Department of the Navy (DoN) or DoD networks are categorized as Privileged, Enhanced, or Authorized users. All user level accesses may include positions which require access to Controlled Unclassified Information (CUI). CUI includes sensitive information protected under the Privacy Act, to include Protected Health Information (PHI). IT System levels are determined by the requiring activity's Command Information System Security Manager (ISSM)/Information Assurance Manager (IAM).

Contractor employees requiring privileged access, (when specified by the terms of the contract) require a Tier 5 (T5) or T5R equivalent investigation, which is a higher level investigation than the Tier 3 (T3) and T3R described below. Due to the privileged system access, an investigation suitable for High Risk national security positions is required. Individuals who have access to system control, monitoring, or administration functions (e.g. system administrator, database administrator) require training and certification to Information Assurance (IA) Technical Level 1, and must be trained and certified on the Operating System or Computing Environment they are required to maintain.

Contractors requiring Enhanced access, (when specified by the terms of the contract) require a T3, T3R, or equivalent investigation, which is a higher level investigation than the Tier 1 (T1) described below. Due to the enhanced system access, an investigation suitable for Moderate Risk national security positions is required.

Access to sensitive IT systems is contingent upon a favorably adjudicated background investigation. When access to IT systems is required for performance of the contractor employee's duties, such employees shall in-process with the Navy CSM and ISSM/IAM manager upon arrival to the Navy command and shall out-process prior to their departure at the completion of the individual's performance under the contract. Completion and approval of a System Authorization Access Request Navy (SAAR-N) form is required for all individuals accessing Navy IT resources. The decision to authorize access to a government IT system/network is inherently governmental. The contractor supervisor is not authorized to sign the SAAR-N; therefore, the government employee with knowledge of the system/network access required or the Contracting Officers Representative (COR) shall sign the SAAR-N as the supervisor.

The SAAR-N shall be forwarded to the CSM upon contractor employee acquiring a Common Access Card (CAC) credential. Failure to obtain a CAC credential may result in delaying the individual's start date.

When required to maintain access to required IT systems or networks, the contractor shall ensure that all contractor employees requiring access complete annual Cyber Awareness training, and maintain a current requisite background investigation. The contractor's security representative shall contact the CSM for guidance when reinvestigations are required.

INTERIM ACCESS

The CSM may authorize issuance of a DoD CAC and interim access to a DoN or DoD unclassified computer/network upon a favorable review of the investigative questionnaire and advance favorable fingerprint results. When the results of the investigation are received and a favorable determination is not made, the contractor employee working on the contract under interim access will be denied access to the computer network and this denial will not relieve the contractor of his/her responsibility to perform.

DENIAL OR TERMINATION OF ACCESS

The potential consequences of any requirement under this clause including denial or termination of physical or system access in no way relieves the contractor from the requirement to execute performance under the contract within the timeframes specified in the contract. Contractors shall plan ahead in processing their employees and subcontractor employees. The contractor shall insert this clause in all subcontracts when the subcontractor is permitted to have unclassified access to a federally controlled facility, federally-controlled information system/network and/or to government information, meaning information not authorized for public release.

ACCESS TO CONTROLLED UNCLASSIFIED INFORMATION

Safeguarding sensitive unclassified information is critical to achieve NAVSUP Modernization efforts and deliver cutting-edge and uncompromised capabilities. The Secretary of Defense's operations security (OPSEC) campaign plan stresses the importance of protecting controlled unclassified information (CUI). CUI encompasses OPSEC, critical technology, intelligence, and personally identifiable information that, if not properly identified,

marked, and controlled, could impair NAVSUP's ability to conduct its mission. Contractor employees with access to Controlled Unclassified Information (CUI) shall comply with DoDI 5200.48 - Controlled Unclassified Information (CUI) and complete DoD approved initial and annual refresher CUI training.

- a. Whenever Government provides CUI to, or CUI is generated by, non-DoD entities, all CUI records must be handled as required by the approved mandatory disposition authority.
- b. All CUI records must follow the approved mandatory disposition authority whenever the Government provides CUI to, or CUI is generated by, non-DoD entities in accordance with Section 1220-1236 of Title 36, CFR, Section 3301a of Title 44, U.S.C., and the DoDI 5200.48.
- c. Contractor employees shall monitor CUI aggregation and compilation based on the potential to generate classified information pursuant to security classification guidance addressing the accumulation of unclassified data or information
- d. Contractor employees shall submit unclassified government information for review and approval for release in accordance with the Standard DoD Component Processes, DoDI 5230.09, and DoDM 5205.07, Volume 1.

CONTRACTOR'S SECURITY REPRESENTATIVE

The contractor shall designate an employee to serve as the contractor's security representative. Within three (3) work days after contract award, the contractor shall provide to the requiring activity's Security Manager and the Contracting Officer, in writing, the name, title, address and phone number for the contractor's security representative. The contractor's security representative shall be the primary point of contact on any security matter. The contractor's security representative shall not be replaced or removed without prior notice to the Contracting Officer and CSM.

BACKGROUND INVESTIGATION REQUIREMENTS AND SECURITY APPROVAL PROCESS FOR CONTRACTORS ASSIGNED TO NATIONAL SECURITY POSITIONS OR PERFORMING SENSITIVE DUTIES

Navy security policy requires that all positions be given a sensitivity value based on level of risk factors to ensure appropriate protective measures are applied. If the Security Office validates the contractor's position is Non-Critical Sensitive or if the IT system user level is determined to be Enhanced, at a minimum, each contractor employee must be a US citizen and have a favorably completed T3, T3R, or equivalent investigation to obtain a favorable determination for assignment to a non-critical sensitive or Enhanced position. The investigation consists of a standard National Agency Check and a FBI fingerprint check plus law enforcement checks and credit check. Each contractor employee filling a non-critical sensitive or Enhanced position is required to complete:

SF-86 Questionnaire for National Security Positions (or equivalent Office of Personnel Management (OPM) investigative product)

Two FD-258 Applicant Fingerprint Cards or electronic fingerprint submission (preferred))

Original Signed Release Statements

Failure to provide the required documentation at least thirty (30) days prior to the individual's start date shall result in delaying the individual's start date. Background investigations shall be reinitiated as required to ensure investigations remain current (not older than ten (10) five (5) years) throughout the contract performance period. The Contractor's Security Representative shall contact the CSM for guidance when reinvestigations are required.

Regardless of their duties or IT access requirements ALL contractor employees shall in-process with the CSM upon arrival to the command and shall out-process prior to their departure at the completion of the individual's performance under the contract. Employees requiring IT access shall also check-in and check-out with the Navy Command's ISSM/IAM. Completion and approval of a System Authorization Access Request Navy (SAAR-N) form is required for all individuals accessing Navy IT resources. The SAAR-N shall be forwarded to the CSM upon the contractor employee acquiring a Common Access Card (CAC) credential. Failure to obtain a CAC credential or provide the required documentation shall result in delaying the individual's start date.

The contractor shall ensure that each contract employee requiring access to IT systems or networks complete annual Cyber Awareness training, and maintain a current requisite background investigation. Contractor employees shall accurately complete the required investigative forms prior to submission to the CSM. The CSM will review the submitted documentation for completeness prior to submitting it to the OPM. Potential suitability or security issues identified may render the contractor employee ineligible for the assignment. An unfavorable determination is final (subject to SF-86 appeal procedures) and such a determination does not relieve the contractor from meeting any contractual obligation under the contract. The CSM will forward the required forms to OPM for processing. Once the investigation is complete, the results will be forwarded by OPM to the DoD Central Adjudication Facility (CAF) for a determination.

For classified contracts, if the contractor employee already possesses a current favorably adjudicated investigation, the contractor shall submit a Visit Access Request (VAR) via the Defense Information Security System (DISS). If the contractor employee does not have a current favorably adjudicated investigation, the contractor shall submit the Visit Access Request in DISS until the contractor employee has at a minimum an interim clearance. If the contract only requires access to unclassified information, even if the contractor takes a DISS "owning" role over the contractor employee, the Navy Command will also take a DISS "owning" role over the contractor employee during the hiring process and for the duration of assignment under that contract. If the contract requires access to classified information, the contractor's Facility Security Office (FSO) will take a DISS "ownership" role and the Navy command will take a DISS "servicing" role during the hiring process and the duration of assignment under that contract. All VARs requires annual renewal for the duration of the employee's performance under the contract.

BACKGROUND INVESTIGATION REQUIREMENTS AND SECURITY APPROVAL PROCESS FOR CONTRACTORS ASSIGNED TO OR PERFORMING NON-SENSITIVE DUTIES

Contractor employee whose work is unclassified and non-sensitive (e.g., performing certain duties such as lawn maintenance, vendor services, etc...) and who require physical access to publicly accessible areas to perform those duties shall meet the following minimum requirements:

Must be either a U.S. citizen or a U.S. permanent resident with a minimum of 3 years of legal residency in the U.S. (as required by the Deputy Secretary of Defense DTM 08-006 or its subsequent DoD Instruction (INST)) and

Must have a favorably completed NACI or T1 investigation or equivalent including a FBI fingerprint check prior to installation access.

To be considered for a favorable trustworthiness determination, the CSR must submit for all employees each of the following:

SF-85 Questionnaire for Non-Sensitive Positions

Two FD-258 Applicant Fingerprint Cards (or the preferred method - electronic fingerprint submission)

Original Signed Release Statements

The contractor shall ensure each individual employee has a current favorably completed NACI or T1 equivalent investigation, or ensure successful FBI fingerprint results have been gained and investigation has been processed with OPM.

Failure to provide the required documentation at least thirty (30) days prior to the individual's start date may result in delaying the individual's start date.

Addendum to 52.212-4, Contract Terms and Conditions - Commercial Products and Commercial Services

Contract Terms and Conditions Required To Implement Statutes or Executive Orders — Commercial Products and Commercial Services

Addendum to Contract Clauses

Contract Clauses

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.209-10	Prohibition on Contracting With Inverted Domestic Corporations. (Deviation)	Feb 2026		
52.227-1	Authorization and Consent.	Jun 2020		
52.232-39	Unenforceability of Unauthorized Obligations.	Jun 2013		
52.240-91	Security Prohibitions and Exclusions. (Deviation)	Feb 2026		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.204-7003	Control of Government Personnel Work Product.	Apr 1992		
252.204-7009	Limitations on the Use or Disclosure of Third-Party Contractor Reported Cyber Incident Information.	Jan 2023		
252.225-7012	Preference for Certain Domestic Commodities.	Apr 2022		
252.225-7048	Export-Controlled Items.	Jun 2013		
252.237-7010	Prohibition on Interrogation of Detainees by Contractor Personnel.	Jan 2023		

List of Contract Documents, Exhibits, or Attachments

Attachments:

Number	Attachment Name	Attachment Description	Reference Identifier	Date
01	1.21_WD_2015-5147 REV 28	Wage Determination		04 Mar 2026
02	1.05_FY26 Performance of Work Statement shear repair	Performance Work Statement		09 Mar 2026

Solicitation Provisions

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.212-1	Instructions to Offerors-Commercial Products and Commercial Services. (Deviation)	Feb 2026		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.203-7005	Representation Relating to Compensation of Former DoD Officials.	Sep 2022		
252.204-7008	Compliance with Safeguarding Covered Defense Information Controls.	Oct 2016		
252.204-7019	Notice of NIST SP 800-171 DoD Assessment Requirements.	Nov 2023		
252.204-7024	Notice on the Use of the Supplier Performance Risk System.	Mar 2023		
252.225-7055	Representation Regarding Business Operations with the Maduro Regime.	May 2022		
252.225-7059	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region-Representation.	Jun 2023		

DFARS Clauses Incorporated by Full Text

252.204-7016 Covered Defense Telecommunications Equipment or Services-Representation. (Dec 2019)

COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION (DEC 2019)

(a) *Definitions.* As used in this provision, "covered defense telecommunications equipment or services" has the meaning provided in the clause 252.204-7018, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.

(b) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered defense telecommunications equipment or services".

(c) *Representation.* The Offeror represents that it ☐ does, ☐ does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(End of provision)

252.204-7017 Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services-Representation. (May 2021)

PROHIBITION ON THE ACQUISITION OF COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION (MAY 2021)

The Offeror is not required to complete the representation in this provision if the Offeror has represented in the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument."

(a) *Definitions.* "Covered defense telecommunications equipment or services," "covered mission," "critical technology," and "substantial or essential component," as used in this provision, have the meanings given in the 252.204-7018 clause, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services, of this solicitation.

(b) *Prohibition.* Section 1656 of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91) prohibits agencies from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system.

(c) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at <https://www.sam.gov> for entities that are excluded when providing any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless a waiver is granted.

(d) *Representation.* If in its annual representations and certifications in SAM the Offeror has represented in paragraph (c) of the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does" provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument, then the Offeror shall complete the following additional representation:

The Offeror represents that it ☐ will ☐ will not provide covered defense telecommunications equipment or services as a part of its offered products or services to DoD in the performance of any award resulting from this solicitation.

(e) *Disclosures.* If the Offeror has represented in paragraph (d) of this provision that it "will provide covered defense telecommunications equipment or services," the Offeror shall provide the following information as part of the offer:

(1) A description of all covered defense telecommunications equipment and services offered (include brand or manufacturer; product, such as model number, original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable).

(2) An explanation of the proposed use of covered defense telecommunications equipment and services and any factors relevant to determining if such use would be permissible under the prohibition referenced in paragraph (b) of this provision.

(3) For services, the entity providing the covered defense telecommunications services (include entity name, unique entity identifier, and Commercial and Government Entity (CAGE) code, if known).

(4) For equipment, the entity that produced or provided the covered defense telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known).

(End of provision)

Addendum to 52.212-1, Instructions to Offerors - Commercial Products and Commercial Services

ADDENDUM 52.212-1, Instructions to Offerors--Commercial Products and Commercial Services.

The following provisions are incorporated into 52.212-1 as an addendum to this solicitation:

The Government intends to post solicitation **N6883626QS037** and all amendments to the Government Point of Entry via **SAM.gov**.

QUESTIONS

All questions and clarifications regarding this solicitation must be submitted via email to Yaynel Yambo at Yaynel.c.yambo.civ@us.navy.mil and robert.s.edwards42.civ@us.navy.mil ; subject line to read: Questions/Clarifications for **N6883626QS037**. Each question or comment should reference the applicable document, page number, and paragraph number. Offerors shall not include any proprietary information in a question, because the Government will provide the question and answer to all potential offerors. All questions must be submitted no later than **2 calendar days from solicitation posting.**

The Government reserves the right not to respond to any questions received concerning this solicitation after the questions receipt date above. Accordingly, offerors are encouraged to carefully review all solicitation requirements and submit questions to the Government early in the proposal timeframe.

HISTORICAL DATA

Incumbent: Contract number **N6883625P0023**

(a) North American Industry Classification System (NAICS) code and small business size standard. This procurement is being solicited in accordance with Federal Acquisition Regulation (FAR) Subpart 19.5 - Small Business programs. See block 10 of the SF1449 for the type of Small Business Set Aside, the North American Industry Classification Code System (NAICS), and the Small Business Size Standard.

(b) Submission of offers. Offerors shall submit offers in PDF format by volume as described below. Each volume shall contain a cover sheet with #1 and #3 below.

The offer shall contain the following information:

1. Solicitation number as indicated on page one (1) of the SF1449, Block 5 and the Title of the procurement.
2. Time specified for receipt of offers: Offerors shall ensure that offers are received by the Government point of contact no later than the date and time indicated on page one (1) of the SF1449, Block 8.
3. Name, title, e-mail address, and telephone number of the individual(s) with authority to bind the company. Offeror's POC information for contractual questions/discussions. CAGE Code, Unique Entity ID (UEI), Business Size, and GSA Contract Number if applicable.
4. Technical Description: See volume II below.
5. Terms of any express warranty: Not modified.
6. Provide Price and any discount terms as described in Price Volume I.
7. "Remit to" address: The Offeror shall submit all volumes of its offer electronically via the Government Point of Entry via Yaynel.c.yambo.civ@us.navy.mil .
8. Representations and certifications: See Contractor Responsibility Volume.
9. Acknowledgment solicitation amendments: All amendments issued on SF-30 with signatures to acknowledge terms and conditions of amendments. Acknowledgement of all amendments issued to the solicitation shall be signed, and dated on the issued SF-30.

10. Past performance information , when included as an evaluation factor, to include recent and relevant contracts for the same or similar items and other references (including contract numbers, points of contact with telephone numbers and other relevant information).

11. Offers that fail to furnish required representations or information, or reject the terms and conditions of the solicitation shall be excluded from consideration.

Offers shall be submitted in volumes as follows:

Volume I - Price

There is no page limit for Volume I submission

Offerors shall submit the following:

1. **Standard Form (SF) 1449.** Blocks 17a, 30a, 30b, and 30c of page one (1) of SF 1449 shall be completed and signed to show the Offeror has read and agrees to comply with all terms, conditions, and instructions provided in the solicitation document.
2. **Price Offer.** The Offeror shall fill in the price schedule and include **unit prices**. The unit price should be evenly incremented so that it adds up to the total price without rounding past the second digit right of the decimal point for total prices for all contract line items (CLINs). Pricing shall be structured in accordance with the contract line items identified in the SF 1449 bid schedule.

Volume II - Technical Capability

Volume II is limited to 10 pages

Offerors shall demonstrate an understanding of the solicitation requirements by providing the following:

1. **Statement of understanding of deliverables in PWS 2.0 and 2.1**

Each technical capability element must provide sufficient evidence that the Offeror has a clear understanding of the solicitation and are able to meet the minimum requirements and qualifications set forth in the PWS.

AWARD NOTICE TO SUCCESSFUL OFFEROR

A written notice of award or acceptance of an Offer will be emailed to the successful Offeror. Before the Offeror's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

Failure to submit all required documentation may render an offer non-responsive and the offer may not be considered for award.

(c) Period for acceptance of offers. Offeror agrees to hold their prices firm for a period of 120 calendar days from date specified for receipt of offers, unless another time period is specified in an amendment to the solicitation.

(d) Product samples. Not modified.

(e) Multiple offers. The Government IS NOT accepting multiple offers presenting alternative terms and conditions, including alternative line items, or alternative commercial products or commercial services for satisfying the requirements of this solicitation.

(f) Late submissions, modifications, revisions, and withdrawals of offers. Not modified.

(g) Contract award. Not modified.

(h) Multiple awards. The Government WILL NOT accept any item or group of items of an offer. The Government WILL NOT accept quantities less than those specified in the schedule. The Government WILL NOT make an award on any item for a quantity less than the quantity offered, at the unit prices offered.

(i) Availability of requirements documents cited in the solicitation. Not modified.

(j) Unique entity identifier. Not modified.

(k) Reserved.

(l) Debriefing. Not modified.

Basis of evaluation

The Government intends to make a single, firm-fixed-price (FFP) award resulting from this solicitation to the responsible quoter whose quote, conforming to the solicitation, is the most advantageous to the Government, price and other factors considered. For this procurement, the Government will use the Lowest Price Technically Acceptable (LPTA) source selection process. The award will be made to the responsible quoter whose quote is technically acceptable and has the lowest evaluated price. To be considered for award, a quote must receive a rating of "Acceptable" for all non-price factors.

Each quote shall be in the form prescribed by and shall contain a response to each of the areas identified in the solicitation provision titled "52.212-1 Addendum, Instructions to Offeror's - Commercial Products and Commercial Services.

The type of source selection utilized in this procurement is lowest price technically acceptable, in accordance with Federal Acquisition Regulation (FAR) Part 12, Acquisition of Commercial Items. The Government expects the best value to result from selection of the technically acceptable quote with the lowest evaluated price. The Government reserves the right to make award solely on initial quote received.

Price: The Government will evaluate price in accordance with FAR 12. The Government may evaluate any and all information submitted by the quoter to support the reasonableness of the prices quoted. The method of evaluation used is solely within the discretion of the Contracting Officer.

- Price will be evaluated by multiplying the estimated quantities by the quoted unit price for each line item and then adding the totals together thereby identifying the quoter's total estimated price for each line item.

Note: Quoters that do not quote all items (including options) or which quoters only quote partial CLIN pricing will be considered non-responsive. Failure to furnish the price in accordance with the instructions above shall render the quote unacceptable.

Technical Capability: The technical rating reflects the degree to which the quoted approach meets or does not meet the minimum performance or capability requirements.

The Government will evaluate the quoter's technical quote on an "acceptable" or "unacceptable" basis. To receive a rating of "Acceptable," the quote shall meet the minimum requirements of the solicitation.

Failure to provide the following will result in an unacceptable rating:

If the quoter is found to be "Unacceptable," the quoter will be removed from further consideration of award.

Acceptable (A) The quote meets the minimum requirements of the solicitation and indicates an adequate approach and demonstrates understanding of the requirements, and risk of unsuccessful performance is low.

Unacceptable (U) The quote does not meet minimum requirements of the solicitation and/or risk of unsuccessful performance is unacceptable. Quote is unawardable.

Past Performance: The Government will make an initial assessment of the past performance of the lowest-priced, technically acceptable quoter as an element of responsibility. The Government will review available information including but not limited to the Contractor Performance Assessment Reporting System (CPARS), representations and certifications found on SAM.GOV, Integrity reports, and SUPPLIER PERFORMANCE RISK SYSTEM (SPRS). The Government may also consider other sources of information.

- Initial Rating: The initial assessment will result in a rating of "Satisfactory" or "Unsatisfactory."
 - Satisfactory. The quoter's performance record indicates a reasonable expectation of successful performance.
 - Neutral. In the case of quoters for which there is no information on past contract performance or where past contract performance is not available, the quoters may not be evaluated favorable or unfavorable on the factor of past contract performance. In this case, the quoter's past performance is unknown and considered neutral.
 - Unsatisfactory. The quoter's performance record leads the Contracting Officer to believe there is not a reasonable expectation of successful performance.

Responsibility: Pursuant to FAR 9.104-3(d), upon making a determination of nonresponsibility with regard to a small business concern, the Contracting Officer shall refer the matter to the Small Business Administration which will decide whether to issue a Certificate of Competency.

Evaluation - Commercial Products and Commercial Services

Addendum to Evaluation - Commercial Product and Commercial Services

Offeror Representations and Certifications - Commercial Products and Commercial Services

Addendum to Solicitation Provisions

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.204-7	System for Award Management-Registration. (Deviation)	Feb 2026		
52.222-50	Combating Trafficking in Persons. (Deviation)	Feb 2026		
52.223-23	Sustainable Products. (Deviation)	Feb 2026		
52.240-90	Security Prohibitions and Exclusions Representations and Certifications. (Deviation)	Feb 2026		

FAR Clauses Incorporated by Full Text

52.252-5 Authorized Deviations in Provisions. (Nov 2020)

Authorized Deviations in Provisions (Nov 2020)

(a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR Chapter 1) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the provision.

(b) The use in this solicitation of any DEFENSE FEDERAL ACQUISITION REGULATION (DFARS) (48 CFR Chapter 2) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of provision)

DFARS Clauses Incorporated by Full Text

252.204-7025 Notice of Cybersecurity Maturity Model Certification Level Requirements. (Nov 2025)

NOTICE OF CYBERSECURITY MATURITY MODEL CERTIFICATION LEVEL REQUIREMENTS (NOV 2025)

(a) *Definitions.* As used in this provision, "controlled unclassified information (CUI)," "current," "Cybersecurity Maturity Model Certification (CMMC) status," "Cybersecurity Maturity Model Certification unique identifier (CMMC UID)," "Federal contract information (FCI)," and "plan of action and milestones" have the meaning given in the Defense Federal Acquisition Regulation Supplement 252.204-7021, Contractor Compliance With the Cybersecurity Maturity Model Certification Level Requirements, clause of this solicitation.

(b)(1) *Cybersecurity Maturity Model Certification (CMMC) level.* The CMMC level required by this solicitation is: ____ [Contracting Officer insert: CMMC Level 1 (Self); CMMC Level 2 (Self); CMMC Level 2 (C3PAO); or CMMC Level 3 (DIBAC)]. This CMMC level, or higher (see 32 CFR part 170), is required prior to award for each contractor information system that will process, store, or transmit Federal contract information (FCI) or controlled unclassified information (CUI) during performance of the contract.

(2) The Offeror will not be eligible for award of a contract, task order, or delivery order resulting from this solicitation if the Offeror does not have, for each of the contractor information systems that will process, store, or transmit FCI or CUI and that will be used in performance of a contract resulting from this solicitation-

(i) The current CMMC status entered in the Supplier Performance Risk System (SPRS) (<https://piee.eb.mil>) at the CMMC level required by paragraph (b)(1) of this provision; and

(ii) A current affirmation of continuous compliance with the security requirements identified at 32 CFR part 170 in SPRS.

(c) *Plan of action and milestones.* If the Offeror has a CMMC Status of Conditional, the Offeror shall successfully close out a valid plan of action and milestones (32 CFR 170.21) to achieve a CMMC Status of Final.

(d) *CMMC unique identifiers.* The Offeror shall provide, in the proposal, the CMMC unique identifier(s) (CMMC UIDs) issued by SPRS for each contractor information system that will process, store, or transmit FCI or CUI during performance of a contract, task order, or delivery order

resulting from this solicitation. The Offeror also shall update the list when new CMMC UIDs are generated in SPRS. The CMMC UIDs are provided in SPRS after the Offeror enters the results of self-assessment(s) for each such information system.

(End of provision)

PERFORMANCE WORK STATEMENT
Maintenance and Repair of Hydraulic Shear
For Naval Construction Training Center Gulfport, Gulfport, MS

1.0 INTRODUCTION

The Naval Construction Training Center (NCTC), Gulfport is a Naval shore activity in an active operating status. An Echelon V Command, NCTC's Commanding Officer reports to the Center for Seabees and Facilities Engineering (CSFE); the Naval Education and Training Command (NETC); and ultimately, to the Chief of Naval Operations (CNO), respectively. NCTC Gulfport is subject to the regional area coordination authority of the Commanding Officer, Naval Construction Battalion Center (NCBC).

NCTC Gulfport provides support to the CSFE Detachment Sheppard Air Force Base, Texas; and CSFE Detachment Fort Leonard Wood, Missouri as their responsible Training Systems Detachment (TSD).

2.0 REQUIREMENTS

The objective of this action is to perform critical maintenance of the AS 500-14 Shear Machine. One time service contract includes the installation of new cutting blade, remove and repair 15 clamp cylinders, repair of mushroomed clamp cylinders, and replace / clean hydraulic filters.

2.1 SALIENT CHARACTERISTICS (AS 500-14)

Capacity to Mild Steel/A36	1/2" x 14'
Capacity to Stainless Steel	3/8" x 14'
Shearing Tons	90
# of Hold Downs	15
Bore of Hold Downs	3 Inches
Hold Down Force	132 Tons
Weight	52,000 lbs.
Backgauge Travel	36 Inches
Additional Features	a. PLC Touch Screen Control b. 36" Travel EXTREMELY Heavy Duty Backgauge c. Infinitely Variable, Quick-Change Blade Gap Adjustment d. Fully Loaded, Extremely Heavy Duty Table

Contractor shall conduct cylinder repair on 15 clamp cylinders, one cylinder with mushroomed clamp, and remove / replace the hydraulic oil filters. Contractor shall remove/replace existing sheet metal shear blades, perform associated backstop calibration/parts adjustment and conduct general preventative maintenance on the machine as outlined in accordance with the Original Equipment Manufacturer (OEM) specifications. OEM is Standard Industrial Corporation,

Model AS 500-14. Contractor is required to provide any incidental hardware/supplies associated with the blade replacement/service. No additional work or parts are authorized without the advance written approval of the contracting officer.

3.0 REQUIREMENTS

The objective of this action is to procure, deliver, remove and install the items prescribed herein at the delivery address referenced below.

Items are needed by 45 Days after Receipt of Order (ARO).

3.1 DELIVERY ADDRESS

Naval Construction Training Center (NCTC)
5510 CBC 8th Street
Gulfport, MS 39501-5003 Building 441,
Charlie Company, SW Shop

3.2 SPECIAL DELIVERY INSTRUCTIONS

Delivery shall take place between the core business hours of 0800AM – 1530PM CST, Monday through Friday and shall not include after-hours, weekends, and federal holidays.

3.3 INCLEMENT WEATHER

The Contractor shall perform deliveries as scheduled including during periods of inclement weather unless specific approval to delay is requested by the Contractor and approved by the Designated Government Representative (DGR). Such approval will normally be granted only in cases of exceptionally severe weather, such as hurricanes or tornados, etc. The Contractor shall not request additional cost for schedule changes due to inclement weather.

4.0 TYPE OF CONTRACT

The Government will award a Firm Fixed Price Contract.

5.0 QUALITY CONTROL

Quality Control is the responsibility of the Contractor. The Contractor is responsible for the delivery of quality supplies or services to the Government in accordance with (IAW) the terms and conditions contained in Federal Acquisition Regulation (FAR) 52.246-1 entitled, “Contractor Inspection Requirements” and applicable sub-clauses pertaining to quality control.

52.246-1 Contractor Inspection Requirements.

CONTRACTOR INSPECTION REQUIREMENTS (APR 1984)

The Contractor is responsible for performing or having performed all inspections and tests necessary to substantiate that the supplies or services furnished under this contract conform to contract requirements, including any applicable technical requirements for specified manufacturers' parts. This clause takes precedence over any Government inspection and testing required in the contract's specifications, except for specialized inspections or tests specified to be performed solely by the Government.

5.1 INSPECTION REQUIREMENT

The Contractor shall provide quality services and/or products IAW this contract. Upon delivery, the Contractor shall notify the DGR for an inspection and acceptance of the delivery.

6.0 DESIGNATED GOVERNMENT REPRESENTATIVE (DGR)

This acquisition is not technically complex, and for that reason, it does not require a Contracting Officer Representative (COR). However, a DGR will report to the Contracting Officer that all products and/or services from the Contractor have been delivered and accepted. Government points of contact (POC) - NCTC Technical POC is [PROVIDED AT TIME OF AWARD](#). Designated Government Representative is [PROVIDED AT TIME OF AWARD](#).

The DGR monitors all technical aspects of the contract. The DGR is authorized to perform the following functions: Assure that the Contractor performs the technical requirements of the contract; perform inspections necessary in connection with contract performance; maintain written and oral communications with the Contractor concerning technical aspects of the contract; including Government drawings, designs, and specifications; monitor Contractor's performance and notify both the KO and Contractor of any deficiencies; coordinate availability of Government furnished property; and provide site entry of Contractor personnel. The DGR is not authorized to change any of the terms and conditions of the resulting contract. The Contractor shall coordinate and obtain prior approval from the DGR for all delivery, truck loading and unloading, the positioning and use of any heavy equipment, commencing any work, and all other issues. The DGR is responsible for the scheduling and coordination of all work to be accomplished as required per this specification.

7.0 CONTRACTOR ACCESS AND USE OF PREMISES

The Contractor shall be responsible for securing the necessary permits and base access passes for Contractor personnel, vehicles, and equipment for the duration of the contract. Naval

Construction Training Center Gulfport Security Forces reserve the right to refuse issuance of a pass to Contractor personnel for any reason deemed valid by the Government.

Contractors shall identify themselves as either a U.S. Owned or a Foreign Owned, Controlled or Influenced (FOCI) entity.

Citizenship. Visitors shall be U.S. citizens. Foreign nationals are rarely granted access unless certain arrangements have been made with Naval Construction Training Center Gulfport.

U.S. citizen personnel of a Foreign Owned, Controlled or Influenced (FOCI) entity shall be required to provide the Naval Construction Training Center Gulfport security forces at the Pass and ID Office, located at their Main Gate, with vehicle registration, proof of insurance, driver's license, and second form of picture ID. A Visit / Access Request on company letterhead is also required at least 48 hours (recommend at least five days) in advance of item(s) delivery.

U.S. Owned company personnel shall be required to provide the security forces with vehicle registration, proof of insurance, and driver's license.

Infrequent Access (<30 days/year): Unless the Contractor/visitor is registered in the Defense Biometric Identification System (DBIDS), all infrequent visitors of less than 30 consecutive days shall be required to stop at the Naval Construction Training Center Gulfport Pass Decal office every day to obtain a one-day pass until work is completed.

DBIDS

For contractors, vendors and suppliers, only:

- If you were issued an NCACS credential PRIOR to 17 April 2017, your NCACS credential will remain in effect for base access through 14 August 2017, when NCACS credentials will no longer be valid.
- If you are issued an NCACS credential between 17 April and 30 June 2017 you will also be required to obtain a DBIDS credential in order to obtain base access.
- Any new contractor, vendor or supplier requesting base access AFTER 30 June will be required to obtain a DBIDS credential. NCACS credentials will no longer be issued.
- Only DBIDS credentials will be issued to ALL contractors, vendors and suppliers seeking base access AFTER 30 June 2017.

News Article: [Navy Installations Underway with Transitioning to Defense Biometric Identification System](#) Defense Biometric Identification System (DBIDS) increases installation security and communications by receiving frequent database updates on changes to personnel/credential status, law enforcement warrants, lost/stolen cards, and force protection conditions. The system provides a continuous vetting anytime the DBIDS card is scanned at an installation entry point.

If you currently have a Navy Commercial Access Control System (NCACS) card, the following is required to get a DBIDS credential:

- Present your NCACS Card and a completed copy of the SECNAV FORM 5512/1 to the base Visitor Control Center representative.
- The VCC will pull up your information in the computer, ensuring all information is current and correct.
- Once your information is validated, a temporary DBIDS credential is provided.
- Your temporary credential will have an expiration date, prior to which you will need to obtain your permanent DBIDS credential (~ 180 days).
- For each additional U.S. Navy installation to which you need access, the first time you visit you only need to bring your DBIDS credential and statement of purpose for base access when arriving at the Visitor Control Center.
- The representative will enter base access authorization and then you may proceed to work.

If you do NOT have an NCACS Card, the following is required to obtain a DBIDS credential:

- Present a letter or official document from my government sponsoring organization that provides the purpose for your access.
- Present valid identification, such as a passport or Real ID Act-compliant state driver's license.
- Present a completed copy of the SECNAV 5512/1 form to obtain your background check.
- Upon completion of the background check, the Visitor Control Center representative will complete the DBIDS enrollment process, which includes your photo, finger prints, base restrictions, and several other assessments; after all this is done, you will be provided with your new DBIDS credential.
- You may now proceed to work.

FOR ADDITIONAL QUESTIONS ABOUT OBTAINING A DBIDS CARD, CONTACT YOUR LOCAL BASE VISITOR CONTROL CENTER

Download CNIC DBIDS flyer below:

[CNIC DBIDS FLYER.pdf](#)

Download SECNAV form below:

[SECNAV Form 5512-1 \(Apr 2024\)](#)

"REGISTER OF WAGE DETERMINATIONS UNDER THE SERVICE CONTRACT ACT By direction of the Secretary of Labor		U.S. DEPARTMENT OF LABOR EMPLOYMENT STANDARDS ADMINISTRATION WAGE AND HOUR DIVISION WASHINGTON D.C. 20210
Daniel W. Simms Director		Wage Determination No.: 2015-5147 Revision No.: 28 Date Of Last Revision: 12/03/2025
Division of Wage Determinations		

State: Mississippi

Area: Mississippi Counties of Hancock, Harrison, Jackson

****Fringe Benefits Required Follow the Occupational Listing****

OCCUPATION CODE - TITLE	FOOTNOTE	RATE
01000 - Administrative Support And Clerical Occupations		
01011 - Accounting Clerk I		16.70
01012 - Accounting Clerk II		18.74
01013 - Accounting Clerk III		20.96
01020 - Administrative Assistant		26.55
01035 - Court Reporter		20.70
01041 - Customer Service Representative I		15.32
01042 - Customer Service Representative II		16.72
01043 - Customer Service Representative III		18.76
01051 - Data Entry Operator I		14.96
01052 - Data Entry Operator II		16.32
01060 - Dispatcher, Motor Vehicle		17.97
01070 - Document Preparation Clerk		16.49
01090 - Duplicating Machine Operator		16.49
01111 - General Clerk I		15.57
01112 - General Clerk II		16.98
01113 - General Clerk III		19.07
01120 - Housing Referral Assistant		23.07
01141 - Messenger Courier		16.64
01191 - Order Clerk I		17.13
01192 - Order Clerk II		18.69
01261 - Personnel Assistant (Employment) I		18.90
01262 - Personnel Assistant (Employment) II		21.14
01263 - Personnel Assistant (Employment) III		23.56
01270 - Production Control Clerk		28.86
01290 - Rental Clerk		14.85
01300 - Scheduler, Maintenance		18.51
01311 - Secretary I		18.51
01312 - Secretary II		20.70
01313 - Secretary III		23.07
01320 - Service Order Dispatcher		16.07
01410 - Supply Technician		26.55
01420 - Survey Worker		15.83
01460 - Switchboard Operator/Receptionist		14.79
01531 - Travel Clerk I		15.77
01532 - Travel Clerk II		16.76
01533 - Travel Clerk III		19.31
01611 - Word Processor I		16.49
01612 - Word Processor II		18.51
01613 - Word Processor III		20.70
05000 - Automotive Service Occupations		
05005 - Automobile Body Repairer, Fiberglass		23.66
05010 - Automotive Electrician		18.30

05040 - Automotive Glass Installer	17.64
05070 - Automotive Worker	17.64
05110 - Mobile Equipment Servicer	16.24
05130 - Motor Equipment Metal Mechanic	18.94
05160 - Motor Equipment Metal Worker	17.64
05190 - Motor Vehicle Mechanic	19.39
05220 - Motor Vehicle Mechanic Helper	15.53
05250 - Motor Vehicle Upholstery Worker	16.94
05280 - Motor Vehicle Wrecker	17.64
05310 - Painter, Automotive	18.30
05340 - Radiator Repair Specialist	17.64
05370 - Tire Repairer	17.06
05400 - Transmission Repair Specialist	18.94
07000 - Food Preparation And Service Occupations	
07010 - Baker	14.48
07041 - Cook I	13.66
07042 - Cook II	14.84
07070 - Dishwasher	12.30
07130 - Food Service Worker	11.34
07210 - Meat Cutter	15.21
07260 - Waiter/Waitress	9.88
09000 - Furniture Maintenance And Repair Occupations	
09010 - Electrostatic Spray Painter	29.42
09040 - Furniture Handler	22.41
09080 - Furniture Refinisher	29.42
09090 - Furniture Refinisher Helper	24.95
09110 - Furniture Repairer, Minor	27.22
09130 - Upholsterer	29.42
11000 - General Services And Support Occupations	
11030 - Cleaner, Vehicles	12.97
11060 - Elevator Operator	13.47
11090 - Gardener	17.22
11122 - Housekeeping Aide	13.47
11150 - Janitor	13.47
11210 - Laborer, Grounds Maintenance	14.79
11240 - Maid or Houseman	12.50
11260 - Pruner	14.01
11270 - Tractor Operator	16.47
11330 - Trail Maintenance Worker	14.79
11360 - Window Cleaner	14.22
12000 - Health Occupations	
12010 - Ambulance Driver	20.42
12011 - Breath Alcohol Technician	22.99
12012 - Certified Occupational Therapist Assistant	29.89
12015 - Certified Physical Therapist Assistant	30.05
12020 - Dental Assistant	18.35
12025 - Dental Hygienist	32.83
12030 - EKG Technician	27.09
12035 - Electroneurodiagnostic Technologist	27.09
12040 - Emergency Medical Technician	20.42
12071 - Licensed Practical Nurse I	20.55
12072 - Licensed Practical Nurse II	22.99
12073 - Licensed Practical Nurse III	25.62
12100 - Medical Assistant	16.26
12130 - Medical Laboratory Technician	22.42
12160 - Medical Record Clerk	20.20
12190 - Medical Record Technician	22.58
12195 - Medical Transcriptionist	19.54
12210 - Nuclear Medicine Technologist	50.52
12221 - Nursing Assistant I	13.33
12222 - Nursing Assistant II	15.00
12223 - Nursing Assistant III	16.37
12224 - Nursing Assistant IV	18.37
12235 - Optical Dispenser	16.52
12236 - Optical Technician	19.13

12250 - Pharmacy Technician	18.93
12280 - Phlebotomist	17.48
12305 - Radiologic Technologist	24.72
12311 - Registered Nurse I	25.24
12312 - Registered Nurse II	30.86
12313 - Registered Nurse II, Specialist	30.86
12314 - Registered Nurse III	37.34
12315 - Registered Nurse III, Anesthetist	37.34
12316 - Registered Nurse IV	44.76
12317 - Scheduler (Drug and Alcohol Testing)	28.47
12320 - Substance Abuse Treatment Counselor	19.06
13000 - Information And Arts Occupations	
13011 - Exhibits Specialist I	19.04
13012 - Exhibits Specialist II	23.59
13013 - Exhibits Specialist III	28.85
13041 - Illustrator I	19.04
13042 - Illustrator II	23.59
13043 - Illustrator III	28.85
13047 - Librarian	26.12
13050 - Library Aide/Clerk	11.86
13054 - Library Information Technology Systems Administrator	23.59
13058 - Library Technician	17.09
13061 - Media Specialist I	17.02
13062 - Media Specialist II	19.04
13063 - Media Specialist III	21.23
13071 - Photographer I	17.02
13072 - Photographer II	19.04
13073 - Photographer III	23.59
13074 - Photographer IV	28.85
13075 - Photographer V	34.90
13090 - Technical Order Library Clerk	15.74
13110 - Video Teleconference Technician	19.83
14000 - Information Technology Occupations	
14041 - Computer Operator I	18.02
14042 - Computer Operator II	20.16
14043 - Computer Operator III	22.47
14044 - Computer Operator IV	24.97
14045 - Computer Operator V	27.66
14071 - Computer Programmer I	(see 1) 21.14
14072 - Computer Programmer II	(see 1) 26.20
14073 - Computer Programmer III	(see 1)
14074 - Computer Programmer IV	(see 1)
14101 - Computer Systems Analyst I	(see 1)
14102 - Computer Systems Analyst II	(see 1)
14103 - Computer Systems Analyst III	(see 1)
14150 - Peripheral Equipment Operator	18.02
14160 - Personal Computer Support Technician	24.97
14170 - System Support Specialist	27.66
15000 - Instructional Occupations	
15010 - Aircrew Training Devices Instructor (Non-Rated)	32.25
15020 - Aircrew Training Devices Instructor (Rated)	39.02
15030 - Air Crew Training Devices Instructor (Pilot)	46.78
15050 - Computer Based Training Specialist / Instructor	32.25
15060 - Educational Technologist	39.04
15070 - Flight Instructor (Pilot)	46.78
15080 - Graphic Artist	23.50
15085 - Maintenance Test Pilot, Fixed, Jet/Prop	46.78
15086 - Maintenance Test Pilot, Rotary Wing	46.78
15088 - Non-Maintenance Test/Co-Pilot	46.78
15090 - Technical Instructor	29.00
15095 - Technical Instructor/Course Developer	35.48
15110 - Test Proctor	23.41
15120 - Tutor	23.41
16000 - Laundry, Dry-Cleaning, Pressing And Related Occupations	

16010 - Assembler	11.69
16030 - Counter Attendant	11.69
16040 - Dry Cleaner	13.54
16070 - Finisher, Flatwork, Machine	11.69
16090 - Presser, Hand	11.69
16110 - Presser, Machine, Drycleaning	11.69
16130 - Presser, Machine, Shirts	11.69
16160 - Presser, Machine, Wearing Apparel, Laundry	11.69
16190 - Sewing Machine Operator	14.34
16220 - Tailor	15.19
16250 - Washer, Machine	12.22
19000 - Machine Tool Operation And Repair Occupations	
19010 - Machine-Tool Operator (Tool Room)	27.37
19040 - Tool And Die Maker	30.97
21000 - Materials Handling And Packing Occupations	
21020 - Forklift Operator	19.66
21030 - Material Coordinator	28.86
21040 - Material Expediter	28.86
21050 - Material Handling Laborer	16.39
21071 - Order Filler	15.11
21080 - Production Line Worker (Food Processing)	19.66
21110 - Shipping Packer	19.66
21130 - Shipping/Receiving Clerk	19.66
21140 - Store Worker I	18.52
21150 - Stock Clerk	21.97
21210 - Tools And Parts Attendant	19.66
21410 - Warehouse Specialist	19.66
23000 - Mechanics And Maintenance And Repair Occupations	
23010 - Aerospace Structural Welder	37.77
23019 - Aircraft Logs and Records Technician	32.66
23021 - Aircraft Mechanic I	36.53
23022 - Aircraft Mechanic II	37.77
23023 - Aircraft Mechanic III	38.87
23040 - Aircraft Mechanic Helper	29.94
23050 - Aircraft, Painter	35.30
23060 - Aircraft Servicer	32.66
23070 - Aircraft Survival Flight Equipment Technician	35.30
23080 - Aircraft Worker	34.01
23091 - Aircrew Life Support Equipment (ALSE) Mechanic I	34.01
23092 - Aircrew Life Support Equipment (ALSE) Mechanic II	36.53
23110 - Appliance Mechanic	27.37
23120 - Bicycle Repairer	24.27
23125 - Cable Splicer	33.42
23130 - Carpenter, Maintenance	23.32
23140 - Carpet Layer	26.36
23160 - Electrician, Maintenance	31.78
23181 - Electronics Technician Maintenance I	36.94
23182 - Electronics Technician Maintenance II	38.35
23183 - Electronics Technician Maintenance III	39.68
23260 - Fabric Worker	25.32
23290 - Fire Alarm System Mechanic	25.73
23310 - Fire Extinguisher Repairer	24.27
23311 - Fuel Distribution System Mechanic	28.32
23312 - Fuel Distribution System Operator	24.27
23370 - General Maintenance Worker	20.28
23380 - Ground Support Equipment Mechanic	36.53
23381 - Ground Support Equipment Servicer	32.66
23382 - Ground Support Equipment Worker	34.01
23391 - Gunsmith I	24.27
23392 - Gunsmith II	26.36
23393 - Gunsmith III	28.32
23410 - Heating, Ventilation And Air-Conditioning Mechanic	22.92

23411 - Heating, Ventilation And Air Contidioning Mechanic (Research Facility)	23.70
23430 - Heavy Equipment Mechanic	30.25
23440 - Heavy Equipment Operator	24.19
23460 - Instrument Mechanic	28.32
23465 - Laboratory/Shelter Mechanic	27.37
23470 - Laborer	16.39
23510 - Locksmith	27.37
23530 - Machinery Maintenance Mechanic	36.28
23550 - Machinist, Maintenance	31.81
23580 - Maintenance Trades Helper	22.35
23591 - Metrology Technician I	28.32
23592 - Metrology Technician II	29.29
23593 - Metrology Technician III	30.14
23640 - Millwright	30.60
23710 - Office Appliance Repairer	20.23
23760 - Painter, Maintenance	22.39
23790 - Pipefitter, Maintenance	29.55
23810 - Plumber, Maintenance	28.56
23820 - Pneudraulic Systems Mechanic	28.32
23850 - Rigger	29.74
23870 - Scale Mechanic	26.36
23890 - Sheet-Metal Worker, Maintenance	28.55
23910 - Small Engine Mechanic	18.40
23931 - Telecommunications Mechanic I	28.29
23932 - Telecommunications Mechanic II	30.56
23950 - Telephone Lineman	29.59
23960 - Welder, Combination, Maintenance	29.54
23965 - Well Driller	28.32
23970 - Woodcraft Worker	28.32
23980 - Woodworker	24.27
24000 - Personal Needs Occupations	
24550 - Case Manager	16.37
24570 - Child Care Attendant	10.73
24580 - Child Care Center Clerk	13.38
24610 - Chore Aide	11.54
24620 - Family Readiness And Support Services Coordinator	16.37
24630 - Homemaker	16.37
25000 - Plant And System Operations Occupations	
25010 - Boiler Tender	27.15
25040 - Sewage Plant Operator	21.39
25070 - Stationary Engineer	27.15
25190 - Ventilation Equipment Tender	22.25
25210 - Water Treatment Plant Operator	21.39
27000 - Protective Service Occupations	
27004 - Alarm Monitor	16.47
27007 - Baggage Inspector	14.92
27008 - Corrections Officer	17.19
27010 - Court Security Officer	20.34
27030 - Detection Dog Handler	16.69
27040 - Detention Officer	17.19
27070 - Firefighter	20.47
27101 - Guard I	14.92
27102 - Guard II	16.69
27131 - Police Officer I	23.36
27132 - Police Officer II	25.96
28000 - Recreation Occupations	
28041 - Carnival Equipment Operator	13.39
28042 - Carnival Equipment Repairer	13.99
28043 - Carnival Worker	11.39
28210 - Gate Attendant/Gate Tender	16.52
28310 - Lifeguard	12.71
28350 - Park Attendant (Aide)	18.48
28510 - Recreation Aide/Health Facility Attendant	13.49

28515 - Recreation Specialist	22.89
28630 - Sports Official	14.72
28690 - Swimming Pool Operator	17.32
29000 - Stevedoring/Longshoremen Occupational Services	
29010 - Blocker And Bracer	33.19
29020 - Hatch Tender	33.19
29030 - Line Handler	33.19
29041 - Stevedore I	31.88
29042 - Stevedore II	34.45
30000 - Technical Occupations	
30010 - Air Traffic Control Specialist, Center (HFO) (see 2)	46.07
30011 - Air Traffic Control Specialist, Station (HFO) (see 2)	31.77
30012 - Air Traffic Control Specialist, Terminal (HFO) (see 2)	34.99
30021 - Archeological Technician I	18.86
30022 - Archeological Technician II	21.09
30023 - Archeological Technician III	26.13
30030 - Cartographic Technician	26.13
30040 - Civil Engineering Technician	24.58
30051 - Cryogenic Technician I	28.94
30052 - Cryogenic Technician II	31.95
30061 - Drafter/CAD Operator I	18.86
30062 - Drafter/CAD Operator II	21.09
30063 - Drafter/CAD Operator III	23.51
30064 - Drafter/CAD Operator IV	28.94
30081 - Engineering Technician I	16.80
30082 - Engineering Technician II	18.86
30083 - Engineering Technician III	21.09
30084 - Engineering Technician IV	26.13
30085 - Engineering Technician V	31.95
30086 - Engineering Technician VI	38.66
30090 - Environmental Technician	26.13
30095 - Evidence Control Specialist	26.13
30210 - Laboratory Technician	29.99
30221 - Latent Fingerprint Technician I	28.94
30222 - Latent Fingerprint Technician II	31.95
30240 - Mathematical Technician	26.13
30361 - Paralegal/Legal Assistant I	19.67
30362 - Paralegal/Legal Assistant II	24.38
30363 - Paralegal/Legal Assistant III	29.82
30364 - Paralegal/Legal Assistant IV	36.07
30375 - Petroleum Supply Specialist	31.95
30390 - Photo-Optics Technician	26.13
30395 - Radiation Control Technician	31.95
30461 - Technical Writer I	27.93
30462 - Technical Writer II	31.95
30463 - Technical Writer III	38.66
30491 - Unexploded Ordnance (UXO) Technician I	29.28
30492 - Unexploded Ordnance (UXO) Technician II	35.43
30493 - Unexploded Ordnance (UXO) Technician III	42.46
30494 - Unexploded (UXO) Safety Escort	29.28
30495 - Unexploded (UXO) Sweep Personnel	29.28
30501 - Weather Forecaster I	28.94
30502 - Weather Forecaster II	35.20
30620 - Weather Observer, Combined Upper Air Or Surface Programs (see 2)	23.51
30621 - Weather Observer, Senior (see 2)	26.13
31000 - Transportation/Mobile Equipment Operation Occupations	
31010 - Airplane Pilot	35.43
31020 - Bus Aide	16.27
31030 - Bus Driver	19.77
31043 - Driver Courier	18.92
31260 - Parking and Lot Attendant	11.90
31290 - Shuttle Bus Driver	13.94
31310 - Taxi Driver	12.25
31361 - Truckdriver, Light	19.80

31362 - Truckdriver, Medium	20.76
31363 - Truckdriver, Heavy	22.58
31364 - Truckdriver, Tractor-Trailer	22.58
99000 - Miscellaneous Occupations	
99020 - Cabin Safety Specialist	17.27
99030 - Cashier	10.96
99050 - Desk Clerk	13.00
99095 - Embalmer	28.16
99130 - Flight Follower	29.28
99251 - Laboratory Animal Caretaker I	23.13
99252 - Laboratory Animal Caretaker II	24.18
99260 - Marketing Analyst	27.16
99310 - Mortician	28.16
99410 - Pest Controller	20.71
99510 - Photofinishing Worker	15.39
99710 - Recycling Laborer	21.56
99711 - Recycling Specialist	24.01
99730 - Refuse Collector	20.43
99810 - Sales Clerk	13.68
99820 - School Crossing Guard	18.43
99830 - Survey Party Chief	27.28
99831 - Surveying Aide	18.04
99832 - Surveying Technician	24.77
99840 - Vending Machine Attendant	17.17
99841 - Vending Machine Repairer	19.50
99842 - Vending Machine Repairer Helper	17.17

Note: Executive Order (EO) 13706, Establishing Paid Sick Leave for Federal Contractors, applies to all contracts subject to the Service Contract Act for which the contract is awarded (and any solicitation was issued) on or after January 1, 2017. If this contract is covered by the EO, the contractor must provide employees with 1 hour of paid sick leave for every 30 hours they work, up to 56 hours of paid sick leave each year. Employees must be permitted to use paid sick leave for their own illness, injury or other health-related needs, including preventive care; to assist a family member (or person who is like family to the employee) who is ill, injured, or has other health-related needs, including preventive care; or for reasons resulting from, or to assist a family member (or person who is like family to the employee) who is the victim of, domestic violence, sexual assault, or stalking. Additional information on contractor requirements and worker protections under the EO is available at www.dol.gov/whd/govcontracts.

Note: Executive Order 13658 generally applies to contracts subject to the Service Contract Act that were awarded on or between January 1, 2015 and January 29, 2022, and that have not been renewed or extended on or after January 30, 2022. If a contract is subject to Executive Order 13658, the contractor must pay all covered workers at least \$13.30 per hour (or the applicable wage rate listed on this wage determination, if it is higher) for all hours spent performing on the contract in 2025. The applicable Executive Order minimum wage rate will be adjusted annually. Additional information on contractor requirements and worker protections under Executive Order 13658 is available at www.dol.gov/whd/govcontracts.

ALL OCCUPATIONS LISTED ABOVE RECEIVE THE FOLLOWING BENEFITS:

HEALTH & WELFARE: \$5.55 per hour, up to 40 hours per week, or \$222.00 per week or \$962.00 per month

HEALTH & WELFARE EO 13706: \$5.09 per hour, up to 40 hours per week, or \$203.60 per week, or \$882.27 per month*

*This rate is to be used only when compensating employees for performance on an SCA-

covered contract also covered by EO 13706, Establishing Paid Sick Leave for Federal Contractors. A contractor may not receive credit toward its SCA obligations for any paid sick leave provided pursuant to EO 13706.

VACATION: 1 week paid vacation after 1 year of service with a contractor or successor; 2 weeks after 2 years; 3 weeks after 5 years; and 4 weeks after 15 years. Length of service includes the whole span of continuous service with the present contractor or successor, wherever employed, and with the predecessor contractors in the performance of similar work at the same Federal facility. (Reg. 29 CFR 4.173)

HOLIDAYS: A minimum of eleven paid holidays per year: New Year's Day, Martin Luther King Jr.'s Birthday, Washington's Birthday, Memorial Day, Juneteenth National Independence Day, Independence Day, Labor Day, Columbus Day, Veterans' Day, Thanksgiving Day, and Christmas Day. (A contractor may substitute for any of the named holidays another day off with pay in accordance with a plan communicated to the employees involved.) (See 29 CFR 4.174)

THE OCCUPATIONS WHICH HAVE NUMBERED FOOTNOTES IN PARENTHESES RECEIVE THE FOLLOWING:

1) COMPUTER EMPLOYEES: This wage determination does not apply to any individual employed in a bona fide executive, administrative, or professional capacity, as defined in 29 C.F.R. Part 541. (See 41 C.F.R. 6701(3)). Because most Computer Systems Analysts and Computer Programmers who are paid at least \$27.63 per hour (or at least \$684 per week if paid on a salary or fee basis) likely qualify as exempt computer professionals under 29 U.S.C. 213(a)(1) and 29 U.S.C. 213(a)(17), this wage determination may not include wage rates for all occupations within those job families. In such instances, a conformance will be necessary if there are nonexempt employees in these job families working on the contract.

Job titles vary widely and change quickly in the computer industry, and are not determinative of whether an employee is an exempt computer professional. To be exempt, computer employees who satisfy the compensation requirements must also have a primary duty that consists of:

(1) The application of systems analysis techniques and procedures, including consulting with users, to determine hardware, software or system functional specifications;

(2) The design, development, documentation, analysis, creation, testing or modification of computer systems or programs, including prototypes, based on and related to user or system design specifications;

(3) The design, documentation, testing, creation or modification of computer programs related to machine operating systems; or

(4) A combination of the aforementioned duties, the performance of which requires the same level of skills. (29 C.F.R. 541.400).

Any computer employee who meets the applicable compensation requirements and the above duties test qualifies as an exempt computer professional under both section 13(a)(1) and section 13(a)(17) of the Fair Labor Standards Act. (Field Assistance Bulletin No. 2006-3 (Dec. 14, 2006)). Accordingly, this wage determination will not apply to any exempt computer employee regardless of which of these two exemptions is utilized.

2) AIR TRAFFIC CONTROLLERS AND WEATHER OBSERVERS - NIGHT PAY & SUNDAY PAY: If you work at night as part of a regular tour of duty, you will earn a night differential and receive an additional 10% of basic pay for any hours worked between 6pm and 6am. If you are a full-time employed (40 hours a week) and Sunday is part of your regularly scheduled workweek, you are paid at your rate of basic pay plus a Sunday premium of 25% of your basic rate for each hour of Sunday work which is not overtime (i.e. occasional work on Sunday outside the normal tour of duty is considered overtime work).

**** HAZARDOUS PAY DIFFERENTIAL ****

An 8 percent differential is applicable to employees employed in a position that represents a high degree of hazard when working with or in close proximity to ordnance, explosives, and incendiary materials. This includes work such as screening, blending, dying, mixing, and pressing of sensitive ordnance, explosives, and pyrotechnic compositions such as lead azide, black powder and photoflash powder.

All dry-house activities involving propellants or explosives. Demilitarization, modification, renovation, demolition, and maintenance operations on sensitive ordnance, explosives and incendiary materials. All operations involving re-grading and cleaning of artillery ranges.

A 4 percent differential is applicable to employees employed in a position that represents a low degree of hazard when working with, or in close proximity to ordnance, (or employees possibly adjacent to) explosives and incendiary materials which involves potential injury such as laceration of hands, face, or arms of the employee engaged in the operation, irritation of the skin, minor burns and the like; minimal damage to immediate or adjacent work area or equipment being used. All operations involving, unloading, storage, and hauling of ordnance, explosive, and incendiary ordnance material other than small arms ammunition. These differentials are only applicable to work that has been specifically designated by the agency for ordnance, explosives, and incendiary material differential pay.

**** UNIFORM ALLOWANCE ****

If employees are required to wear uniforms in the performance of this contract (either by the terms of the Government contract, by the employer, by the state or local law, etc.), the cost of furnishing such uniforms and maintaining (by laundering or dry cleaning) such uniforms is an expense that may not be borne by an employee where such cost reduces the hourly rate below that required by the wage determination. The Department of Labor will accept payment in accordance with the following standards as compliance:

The contractor or subcontractor is required to furnish all employees with an adequate number of uniforms without cost or to reimburse employees for the actual cost of the uniforms. In addition, where uniform cleaning and maintenance is made the responsibility of the employee, all contractors and subcontractors subject to this wage determination shall (in the absence of a bona fide collective bargaining agreement providing for a different amount, or the furnishing of contrary affirmative proof as to the actual cost), reimburse all employees for such cleaning and maintenance at a rate of \$3.35 per week (or \$.67 cents per day). However, in those instances where the uniforms furnished are made of "wash and wear" materials, may be routinely washed and dried with other personal garments, and do not require any special treatment such as dry cleaning, daily washing, or commercial laundering in order to meet the cleanliness or appearance standards set by the terms of the Government contract, by the contractor, by law, or by the nature of the work, there is no requirement that employees be reimbursed for uniform maintenance costs.

**** SERVICE CONTRACT ACT DIRECTORY OF OCCUPATIONS ****

The duties of employees under job titles listed are those described in the "Service Contract Act Directory of Occupations", Fifth Edition (Revision 1), dated September 2015, unless otherwise indicated.

**** REQUEST FOR AUTHORIZATION OF ADDITIONAL CLASSIFICATION AND WAGE RATE, Standard Form 1444 (SF-1444) ****

Conformance Process:

The contracting officer shall require that any class of service employee which is not listed herein and which is to be employed under the contract (i.e., the work to be performed is not performed by any classification listed in the wage determination), be classified by the contractor so as to provide a reasonable

relationship (i.e., appropriate level of skill comparison) between such unlisted classifications and the classifications listed in the wage determination (See 29 CFR 4.6(b)(2)(i)). Such conforming procedures shall be initiated by the contractor prior to the performance of contract work by such unlisted class(es) of employees (See 29 CFR 4.6(b)(2)(ii)). The Wage and Hour Division shall make a final determination of conformed classification, wage rate, and/or fringe benefits which shall be paid to all employees performing in the classification from the first day of work on which contract work is performed by them in the classification. Failure to pay such unlisted employees the compensation agreed upon by the interested parties and/or fully determined by the Wage and Hour Division retroactive to the date such class of employees commenced contract work shall be a violation of the Act and this contract. (See 29 CFR 4.6(b)(2)(v)). When multiple wage determinations are included in a contract, a separate SF-1444 should be prepared for each wage determination to which a class(es) is to be conformed.

The process for preparing a conformance request is as follows:

- 1) When preparing the bid, the contractor identifies the need for a conformed occupation(s) and computes a proposed rate(s).
- 2) After contract award, the contractor prepares a written report listing in order the proposed classification title(s), a Federal grade equivalency (FGE) for each proposed classification(s), job description(s), and rationale for proposed wage rate(s), including information regarding the agreement or disagreement of the authorized representative of the employees involved, or where there is no authorized representative, the employees themselves. This report should be submitted to the contracting officer no later than 30 days after such unlisted class(es) of employees performs any contract work.
- 3) The contracting officer reviews the proposed action and promptly submits a report of the action, together with the agency's recommendations and pertinent information including the position of the contractor and the employees, to the U.S. Department of Labor, Wage and Hour Division, for review (See 29 CFR 4.6(b)(2)(ii)).
- 4) Within 30 days of receipt, the Wage and Hour Division approves, modifies, or disapproves the action via transmittal to the agency contracting officer, or notifies the contracting officer that additional time will be required to process the request.
- 5) The contracting officer transmits the Wage and Hour Division's decision to the contractor.
- 6) Each affected employee shall be furnished by the contractor with a written copy of such determination or it shall be posted as a part of the wage determination (See 29 CFR 4.6(b)(2)(iii)).

Information required by the Regulations must be submitted on SF-1444 or bond paper.

When preparing a conformance request, the ""Service Contract Act Directory of Occupations"" should be used to compare job definitions to ensure that duties requested are not performed by a classification already listed in the wage determination. Remember, it is not the job title, but the required tasks that determine whether a class is included in an established wage determination. Conformances may not be used to artificially split, combine, or subdivide classifications listed in the wage determination (See 29 CFR 4.152(c)(1))."